

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
NATALIE SILVA,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. ERIK PRATZ Shield No.:30562,
P.O. LYNDSEY COPPOLA Tax ID No.:963467,
OFFICER R. MALIK ID No: 938921, NEW YORK CITY
POLICE OFFICERS JOHN AND JANE DOE #1-10
(intended as police officers whose names and identifying
information are unknown)Defendant.
-----X

Index No.:

Date Original

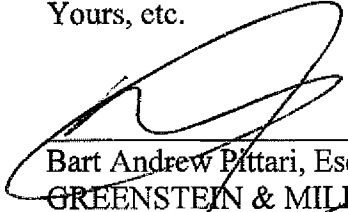
SUMMONSPlaintiff designates QUEENS
County as the place of trialThe basis of venue is location
where the cause of action arose

To the above-named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer or, if the Complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, NY
March 7, 2022

Yours, etc.


Bart Andrew Pittari, Esq.
GREENSTEIN & MILBAUER, LLP.
Attorney for Plaintiff
NATALIE SILVA
1825 Park Avenue 9th Floor
New York, NY 10035
(212) 685-8500
Our File No.: 19155

To:
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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NATALIE SILVA,

Plaintiff,

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THE CITY OF NEW YORK, NEW YORK CITY POLICE
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P.O. LYNDASAY COPPOLA Tax ID No.:963467,
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POLICE OFFICERS JOHN AND JANE DOE #1-10
(intended as police officers whose names and identifying
information are unknown)

COMPLAINT

Defendant.
-----X

Plaintiff, NATALIE SILVA, complaining of Defendants, by Plaintiff's attorneys,
GREENSTEIN & MILBAUER LLP., respectfully shows to this Court, and alleges upon
information and belief, the following:

1. That at all times hereinafter mentioned, Plaintiff, **NATALIE SILVA**, is a resident of
QUEENS County, State of New York.
2. That at all times hereinafter mentioned, **P.O. ERIK PRATZ Shield No.:30562, P.O.
LYNDASAY COPPOLA Tax ID No.:963467, OFFICER R. MALIK ID No: 938921
and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE ("DOE")
#1-10**, collectively, the officers involved in the arrest of Natalie Silva, were employed by
the New York City Police Department.
3. That at all times hereinafter mentioned, "DOE" were police officers, acting within their
scope of employment and under the color of duty of the City of New York and the New
York City Police Department.
4. That at all times hereinafter mentioned, Defendant, **THE CITY OF NEW YORK**, is a

municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 100 Church Street, County of New York, City and State of New York.

5. That at all times hereinafter mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was an is an agency created and maintained by the above municipal government.
6. On or about March 29, 2021, the notice required by Municipal Law 50-E was given to The City of New York, by service via certified mailing. Said notice set forth the facts underlying Plaintiff's claim against The City of New York, and its agents and employees.
7. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about May 21, 2021, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim against The City of New York and its agents, and employees. To date, no answer has been received by the Plaintiff and no compensation has been offered by The City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about December 12, 2020, Plaintiff was lawfully traveling at the northeast intersection of Grand Central Parkway and Jackie Robinson Parkway, Queens, NY.
10. That on or about December 12, 2020, Plaintiff was involved in a motor vehicle accident at said premise.
11. That on or about December 12, 2020, the Defendant responded to the motor vehicle accident at said premise.
12. That at no time was Plaintiff, **NATALIE SILVA**, engaged in any criminal or unlawful

activity.

13. Thereafter Plaintiff, **NATALIE SILVA**, was arrested by the Defendants, and transported to the 112th Precinct.

14. While Plaintiff, **NATALIE SILVA**, was at the 112th Precinct, the Plaintiff was searched and nothing of illegal nature was recovered.

15. That after being held in a cell inside of the Precinct for at least one (1) day Plaintiff was transported to Central Booking.

16. That after being held in the 112th Precinct for at least one (1) day, Plaintiff was released from custody.

17. The Plaintiff was forced to attend Court in relation to the charges under Arrest No.: Q20629982 for which she was arrested for on several separate occasions.

18. That on or about March 12, 2021, the QUEENS County Criminal Court dismissed all charges for which Plaintiff, **NATALIE SILVA**, was falsely arrested for on December 12, 2020.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

19. That Defendants acted with actual malice toward Plaintiff, **NATALIE SILVA**, and acted with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

20. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

21. That as a result of the actions by Defendants, Plaintiff, **NATALIE SILVA**, was traumatized and fears of the Plaintiff's own physical safety when the Plaintiff sees and encounters members of the New York City Police Department from the day of the arrest

and onward.

22. That as a result of Defendants' actions, Plaintiff has been unable to sleep.

23. That as a result of Defendants' actions, Plaintiff has been unable to maintain employment.

24. That as a result of the Defendants' actions, Plaintiff sustained damage to Plaintiff's person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

25. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-24 as if more fully stated herein at length.

26. The intentional verbal abuse, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth, and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

27. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward the Plaintiff and with willful and wanton indifference to and deliberate disregard for the Plaintiff's constitutional rights. Therefore, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

28. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-27 as if more fully stated herein at length.

29. Defendants conspired to violated Plaintiff, NATALIE SILVA's, statutory civil rights in violation of 42 U.S.C. §1983, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

30. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-29 as if more fully stated herein at length.

31. That at all times pertinent hereto, Defendants, **P.O. ERIK PRATZ Shield No.:30562, P.O. LYNDSEY COPPOLA Tax ID No.:963467 and OFFICER R. MALIK ID No: 938921**, were acting within the scope of their employment as officers of the New York City Police Department and the City of New York.

32. Plaintiff, **NATALIE SILVA**, was verbally abused, falsely arrested, falsely imprisoned, and maliciously prosecuted by Defendants in a manner that was extreme, outrageous, and unjustified and caused Plaintiff to suffer physical and sever emotional distress for which the Defendants are individually liable.

33. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

34. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.

35. That the respective Defendants, their agents, servants, and/or employees, engaged in presenting and/or providing false information and/or testimony for the purpose of

prosecuting this action.

36. That Defendants, **THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT**, are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that Defendants, **P.O. ERIK PRATZ Shield No.:30562, P.O. LYND SAY COPPOLA Tax ID No.:963467 and OFFICER R. MALIK ID No: 938921**, committed within the scope of their employment.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

37. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-36 as if more fully states herein at length.

38. Defendants, **THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT**, failure to provide adequate training and supervision to Defendants, **P.O. ERIK PRATZ Shield No.:30562, P.O. LYND SAY COPPOLA Tax ID No.:963467 and OFFICER R. MALIK ID No: 938921**, constitute a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff, **NATALIE SILVA**. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

39. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-38 as if more fully states herein at length.

40. The Defendant, **THE CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, **THE CITY OF NEW YORK**, knew or should have known

of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, **THE CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

41. The Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

42. That by reason of the foregoing, Plaintiff, **NATALIE SILVA**, was severely injured and damages, rendered sick, sore, lame and disable, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff incurred and in the future will necessarily incur further hospital

and/or medical expenses in an effort to be cured of said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

43. That by reason of the aforesaid unlawful arrest, the Plaintiff, was deprived of Plaintiff's liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in Plaintiff's character and reputation, was prevented from attending Plaintiff's usual business and avocation, was injured in Plaintiff's reputation in the community and the said Plaintiff has been otherwise damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
NATALIE SILVA**

44. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-43 as if more fully states herein at length.
45. Upon information and belief, the City of New York and the New York City Police Department maintained a system of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.
46. Upon information and belief, **THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT**, maintained a system to review police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.
47. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trail of this

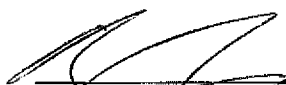
action.

WHEREFORE, Plaintiff, demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Seventh Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this

action, together with costs, disbursements, and punitive damages in an amount to be determined at the time of the trial in the within action including any statutory attorney's fees and disbursements pursuant to 42 U.S.C. § 1983 and for such other and further relief as to this Court may deem just and proper.

Dated: New York, NY
March 10, 2022

Yours, etc.



Bart Andrew Pittari, Esq.
~~GREENSTEIN & MILBAUER, LLP.~~
Attorney for Plaintiff
NATALIE SILVA
1825 Park Avenue 9th Floor
New York, NY 10035
(212) 685-8500
Our File No.: 19155

VERIFICATION

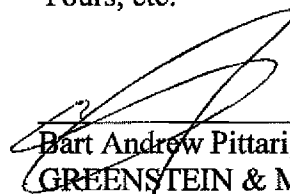
I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter and make this affirmation in accordance with C.P.L.R. §3020. I have read the within Complaint and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: New York, NY
March 10, 2022

Yours, etc.



Bart Andrew Pittari, Esq.
GREENSTEIN & MILBAUER, LLP.
Attorney for Plaintiff
NATALIE SILVA
1825 Park Avenue 9th Floor
New York, NY 10035
(212) 685-8500
Our File No.: 19155